

Continuity of Operations Plan – Abbreviated Performance Work Statement (PWS)

Introduction and Background

The United States Patent and Trademark Office (USPTO) is the federal agency for granting U.S. patents and registering trademarks. The strength and vitality of the U.S. economy depends directly on effective mechanisms that protect new ideas and investments in innovation and creativity. The continued demand for patents and trademarks underscores the ingenuity of American inventors and entrepreneurs.

The Office of the Chief Administrative Officer (OCAO), Office of Administrative Services, Security and Emergency Management Division oversees implementation and compliance with all federal laws and regulations pertaining to COOP and OEP programs including developing plans, procedures, training materials and educational programs for designated COOP; Pandemic, Emergency Communications, and OEP (such as printed material, articles, Power Point, classroom and computer-based training).

The Office of Procurement (OP) within OCFO awards and administers a wide variety of contracts and simplified purchases for the acquisition of goods and services in support of the agency's mission. It seeks to obtain immediate program support to help perform day-to-day activities as the office continues to grow and expand to meet demand.

Purpose and Scope

Purpose

The purpose of the COR contract is to acquire support services by securing a company that will provide four Emergency Management Specialists and one supervisor to assist the Security and Emergency Management Division with assessing USPTO's COOP program and revising the COOP plan to adhere to the recently updated Federal Continuity Directives (FCD). Focus areas include; gap analysis; Mission Essential Function (MEF) Validation; Business Process Analysis (requirement) / Business Impact Analysis (BIA); COOP Plan update and documentation; and developing a Training, Testing, and Exercise (TT&E) Program. All work must conform with applicable federal government regulations and policies, as well as other agency supplemental regulations and policies as appropriate.

Scope / Performance Elements

The Contractor shall perform to the requirements and performance objectives listed in this contract.

Continuity of Operations (COOP) - Performance Elements

- Objective 1 - Gather COOP and Emergency Management documentation, conduct interviews, analyze operations and needs to develop a gap analysis based on current Continuity Directives.
- Objective 2 - Review MEF's, validate or revise then prioritize MEF(s), conduct a MEF validation report.
- Objective 3 - Conduct a full Business Process Analysis / Business Process Analysis through workshops and interviews with Business Units.
- Objective 4 - Update the COOP plan structure and framework to align with the newly updated Federal Continuity Directives, to include Primary, Alternate, Contingency,

and Emergency (PACE) communications strategies and procedures. Provide a final documentation package.

- Objective 5 - Develop TT&E program and requirements based on the updated plan and develop an AAR/IP.

Planning

Continuity of Operations Support - Major Activities

1. Conduct a gap analysis on USPTO's COOP Program utilizing the most recently updated Federal Continuity Guidance.
2. Validate or conduct a MEF identification to solidify USPTO's essential function(s).
3. Conduct a risk-based requirement/BIA based off of the MEF identification process.
4. Assist in the revision and modernization of USPTO COOP Plan and annexes by defining mission owners, building an effective structure, ensure plans are integrated into daily activities, and incorporate PACE communication requirements in accordance with the most recent FCD's.
5. Assist appropriate Business Units in developing and maintaining COOP plans, procedures, and rosters.
6. Support actions needed to maintain agency continuity assets, including devolution, alternate operating facilities, essential records, and continuity communications systems.
7. Ensures that the MEF ID/ requirement-BIA / COOP plans and procedures / Alternate Sites / TT&E /are all in accordance with the most recently updated Federal Continuity Directives.
8. Provide status briefings/papers to senior leadership upon request.

Organizational Effectiveness

1. Manage workload effectively and maintain awareness of taskings.
2. Coordinate information with other staff members and the USPTO population.
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4. Communicate technical information to a variety of audiences in meetings, presentations and/or briefings.
5. Keep supervisor or Contracting Office Representative (COR) informed of program, issues, and progress as appropriate.
6. Analyze current continuity directives and integrate guidance into USPTO's COOP program.
7. Manage sensitive and/or classified materials in accordance with applicable laws, executive order, directives, and regulations.

Representation and Responsiveness

1. Participate in outreach and awareness efforts with clients/customers.
2. Deal effectively with external and internal clients/customers.
3. Keep the COR and appropriate Business Unit heads up to date on program matters and changes as it pertains to COOP.
4. Respond to requests for assistance from clients/customers.

5. Provide and maintain relevant COOP information on the various USPTO websites and platforms.

The USPTO requires the implementation of a comprehensive COOP plan that encompasses the following addresses.

The USPTO Alexandria Campus (Campus) and Regional Offices are comprised of 6 distinct facilities:

1. Jefferson Building, 500 Dulany Street, Alexandria, VA
2. Knox Building, 501 Dulany Street, Alexandria, VA
3. Madison Building (East and West), 600 Dulany Street, Alexandria, VA
4. Elijah J. McCoy Midwest Regional Office: 300 River Place, Detroit, MI 48207
5. Texas Regional Office: Terminal Annex Building, 207 S. Houston Street, Dallas, TX 75202
6. Silicon Valley Regional Office: 26 S. Fourth Street, San Jose, CA 95112

Deliverables

See table below for a list of deliverables.

Ad Hoc Reports

The Contractor shall provide Ad Hoc Reports as requested. From time to time the Contracting Officer may request reports as a result of data calls from the Department of Commerce, USPTO senior leadership, auditors and/or inspectors. Data calls for information will be provided by written requests to include description, format, distribution, and due date.

List of Deliverables, Due Dates and Where to Submit

1. Transition Plan, Submitted with Proposal, CO
2. Kick Off Meeting, Within two weeks of award, Virtual meeting with CO/COR
3. Employee Report (absences, removals, etc.), 30 days after award; periodically at CO discursion, CO and COR
4. Status of Vacancies, 30 days after award; weekly until all vacancies are filled; periodically at CO discretion, CO and COR
5. Quality Control Plan, Submitted with Proposal, CO
6. Strike Contingency Plan (ensure continuity of operations in event of strike or general interruption by Contract Personnel), 60 days after award, CO and COR
7. Contract Personnel Performance Reviews, IAW Quality Control Plan; periodically at CO discretion, CO

Place and Period of Performance

All work described herein shall be performed at the following on-site location unless otherwise specified by the government.

USPTO Headquarters
500 Dulany Street
Alexandria, Virginia 22314

Remote work may be authorized with advance notice and approval from the COR and CO on a case-by-case basis. All necessary USPTO IT security approvals must be met prior to any change, and work shall be conducted in accordance with the latest, applicable USPTO remote work policies. In the event of a national emergency or other type of disaster and/or event, the contractor support services in this contract are deemed non-mission essential.

Estimated Period of Performance

The estimated Base Period of this contract begins July 1, 2026 and ends on July 31, 2027. This is subject to change

Performance Labor Categories

If applicable, Offerors shall match the labor categories in the PWS with the labor categories in the Offeror's GSA Schedule Contract.

All labor categories in this PWS do not require a security clearance but will be exposed to sensitive information regarding USPTO operations. The USPTO expects that the offeror provides contractors who have been cleared at the Public Trust level in order to support the mission of the Emergency Management Branch. The Call Orders will list the security requirements needed. Additional security requirements, if any, will be briefed to the Contractor upon award.

1. (1) Project Manager
2. (4) Continuity of Operations Subject Matter Experts

General Labor Requirements

The Contractor shall furnish employees and services on an as-needed basis to manage, supervise, and perform the task stated herein. The level of effort on each Call Order will require personnel of varying expertise, experience, and education. The Contractor shall provide only qualified, competent, and fully trained personnel who meet applicable security requirements in the performance of work under this requirement. Evidence of qualifications, such as copies of certificates of having successfully completed training courses, may be required if requested by the Contracting Officer. At a minimum, all Contract Personnel must be fully capable of reading, writing, understanding, and speaking common English and must be computer literate.

The Contractor shall immediately inform the COR and/or applicable Government designee (e.g., Government Task Monitor) in writing when an employee or an accepted applicant for a UPTO order has transferred to another order, has resigned or has been terminated, or any other type of action that constitutes a deviation from the vendor's proposed personnel.

Management and Supervision of Contractor Employees

The contractor shall provide supervision of its personnel, and consistent and timely management of the support services the contractors will provide under this contract.

The Contractor shall appoint a Contract Manager who will be the Contractor's authorized representative for overseeing technical and administrative performance of all services required under the contract. The Contract Manager is part of the Contractor's organization and is not a billable position under the contract. The Contract Manager shall be the single point of contact through which all Contractor/Government communication and technical direction shall flow. The Contract Manager shall receive and execute, on behalf of the Contractor, all orders for work and

technical direction as the COR may issue within the terms and conditions of the requirement/PWS. All administrative support of Contractor personnel assigned to perform the tasks under this requirement shall be the responsibility of the Contractor. The Contract Manager is not required to be located at a USPTO site.

The Contractor shall ensure that an appropriate level of management and supervision is provided to accomplish the following:

1. Orientation training for new Contract employees
2. Day-to-day supervision of Contractor assignments
3. On-site supervision for Contractor personnel
4. On-the-job training for new Contractor persons
5. Periodic training of Contractor employees
6. Scheduling of Contractor employees
7. Onsite quality control of work performed by Contractor employees
8. Communication with USPTO COR
9. Ensure deliverables are provided promptly and correctly

Quality Control Plan (QCP)

Requirements

The Contractor shall provide its Quality Control Plan (QCP) with its proposal. The plan must describe quality control procedures that ensure the deliverance of acceptable performance in accordance with the PWS.

Recruitment and Retention

The Contractor shall maintain a recruitment and retention plan to provide for quality and timely services in accordance with this requirement. If applicable, the contractor is not required to engage service employees employed under the predecessor contract, nor offer them a right of first refusal, but the contractor is encouraged to engage incumbent service employees if the contractor, after careful assessment, finds the incumbent service employees qualify to meet the requirements of the solicitation.

Training

The government will provide the contractor with appropriate training as directed by the government and for government-unique systems. The contractor is responsible for and shall ensure staff are properly trained and hold the appropriate credentials as required for the services being performed.

1. Initial training in USPTO policies and procedures;
2. Specific training in USPTO databases and other management systems;
3. Recurring training to complete USPTO requirements;
4. Specific division requirements; new systems or processes, and new laws or procedures.

The USPTO will provide the Contract employees with introductory training on the policies and procedures related to their respective task areas. The USPTO also will provide Contractor personnel with training in, and access to USPTO's management systems, electronic mail and any other tools which, in the judgment of USPTO's management, are required for the Contractor to achieve stated objectives.

The Contractor is required to complete any additional training determined necessary to satisfactorily perform the required services. The USPTO will not reimburse the Contractor for basic qualifying training of its employees. Required certifications in accordance with the tasks performed, labor category, and PWS are at the Contractor's cost.

Transition

The contractor shall propose and implement a transition plan, with phase-in, phase-out procedures, and will keep the Government fully informed of the status of the transition. Throughout the phase-in/phase-out periods, it is essential that the contractor minimize interruptions or delays to work that may impact operations.

Transition Phase-In, Phase Out

Consistent with FAR 52.237-3, upon the Contracting Officer's written notice, the Contractor shall transition the contract to a successor within 90 days after the effective date of the newly awarded contract.

Quality Assurance Surveillance Plan

The Contracting Officer's Representative (COR) is responsible for performing Quality Assurance Reviews (QARs) and for maintaining a Quality Assurance Review Report (QARR) of the surveillance activities to include Surveillance Activity, Performance Measure or Objective, Acceptable Quality Levels (AQL), Surveillance Method and Frequency, and Compliance or Non-Compliance.

Productive Labor Hour

This requirement uses labor effort based on productive labor hours. A productive labor hour is defined as the time spent when Contract Personnel are actually working in accordance with tasks assigned, and the PWS. Productive labor hours also are defined as those hours ordered and, once performed, obligates the government to pay the Contractor for services rendered. Specialty serviced (identified below) that have not been previously listed will be authorized as productive hours only by the Contracting Officer. Other examples of productive labor hours are:

- Time required to attend training at a location other than the primary location where the Contractor's employee is assigned, and as specifically order by USPTO, including reasonable travel time (if outside their primary location of work) as determined by the COR.
- Specialty services to support USPTO events (e.g., Drills, Exercises, Community events, DOC events, team-building, and VIP visits).
- Contractor Shutdown Procedures (in the event of furlough) for no more than four hours.
- Accepted activities as determined by the Contracting Officer during a Government shutdown.

Non-Productive Hours

Non-Productive hours are not billable and some examples, but not limited to these examples, are listed below:

- Leave (holiday, sick, vacation, administrative)
- Government closures (inclement weather, presidentially-directed, furlough)
- Special Holiday Time provided by Executive Order from the President

- Non-excepted activities during a government shutdown
- Commuting time
- Excessive lateness
- Miscellaneous social events (office picnics, and other social occasions at the division/office level)

Work Schedule

Operating Hours

Operating hours consist of an eight-hour daily work schedule, which begin no earlier than 0600 hrs. and no later than 1800 hrs. Monday through Friday. Exceptions include federal holidays or when the government facility is closed due to local or national emergencies, administrative closings, or similar government directed facility closings. Normal business hours may be adjusted to support after hours and weekend work. USPTO observes the federal holidays as found and updated currently on the OPM website:

<https://www.opm.gov/policy-data-oversight/pay-leave/federal-holidays/>

Reasonable Accommodation

Reasonable accommodations are the sole responsibility of the Contractor. Reasonable accommodations should not be requested by Contract Personnel to, or authorized by, any Government employee.

Collateral Duties

Contract Personnel are not authorized to work collateral duties that would conflict with the productive labor hours worked for USPTO. For example, Contract Personnel should not perform a non-billable task (e.g., Contract Manager) for the Contractor and billable task (e.g. Data Analyst) during a regularly scheduled work day. Contract Personnel shall work 40 productive labor hours per week only in support of USPTO.

Travel

It is expected that the Contractor shall have a cumulative nationwide presence to mitigate the costs of excessive travel. It is the Contractor's responsibility to ensure they propose fully burdened labor rates consist with schedule rates to cover the cost of travel. Generally, travel and travel-related costs will not be reimbursed. The USPTO will only allow reimbursement of travel costs under extenuating circumstances, and it must be approved in writing by the Contracting Officer (CO) or Contracting Officer's Representative (COR). In such cases, travel shall be conducted and reimbursed in accordance with Federal Travel Regulations.

Overtime

For non-exempt employees working in excess of a forty (40) hour work week, the billable rate for the excess hours is the "overtime" rate established by the Fair Labor Standards Act. Overtime will only be allowed if specifically authorized in the task order itself, or authorized in advance in writing by the Contracting Officer.

Federal Holidays

The following are eleven Federal Holidays recognized by the United States Government.

- New Year's Day
- Martin Luther King, Jr. Day
- President's Day
- Memorial Day
- Juneteenth National Independence Day
- Independence Day
- Labor Day
- Columbus Day
- Veteran's Day
- Thanksgiving Day
- Christmas Day

Federal Holidays are considered non-productive hours and therefore are not billable. Contract Personnel shall not work on Federal Holidays unless otherwise directed by the Contracting Officer or the COR.

Security Requirement

Positions on the requirement and its respective Call Orders do not require a security clearance. However, these are Public Trust Positions, wherein no security clearance is needed. The Call Orders will list the security requirements needed. Additional security requirements, if any, will be briefed to the Contractor upon award.

Contractor General Responsibilities

The Contractor shall inform all Contract Personnel of their duties, obligations, and responsibilities under the requirement. The Contractor shall report in writing, any violation of the On-Site Contractor Responsibilities document to the CO and COR.

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